

Abdul Hameed Alias Abdul Haneef v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 11 April 2013 · Writ - C No. 17317 of 2013 · **Check meter directed under clause 5.6; bills to be corrected on result**

HEADNOTE

On a domestic consumer's plea that the licensee had neither installed a check meter nor revised a disputed high-consumption bill, the Court directed installation of a check meter under clause 5.6 of the Uttar Pradesh Electricity Supply Code, 2005 within one month, and correction of bills according to the inspection result.

FACTUAL SUMMARY

The petitioner held a domestic connection from U.P. Power Corporation Ltd. and had been paying charges. In July and August 2011 the licensee raised a bill of Rs.1,50,773. Objecting, he deposited Rs.50,000 and asked for a check meter to test whether the existing meter was defective. His grievance was that neither a check meter had been installed nor the July 2011 bill revised. He sought a writ for check-meter installation and bill correction.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

check meter for alleged defective meter

HOLDING

Where a domestic consumer disputes a high-consumption bill and seeks a check meter alleging the installed meter is defective, the licensee must install a check meter in terms of clause 5.6 of the U.P. Electricity Supply Code, 2005 and, depending on the inspection result, pass appropriate orders for correction of bills. ¶ 1

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ On a domestic consumer's plea that the licensee had neither installed a check meter nor revised a disputed high-consumption bill, the Court directed installation of a check meter under clause 5.6 of the Uttar Pradesh Electricity Supply Code, 2005 within one month ¶ 1